

File 46: Landowner Referral Program & JV Incentive Agreements

Strict B2B Launch Policy: *In accordance with executive instructions, **no active outreach or cold emailing will be initiated at this stage.** This playbook, along with the detailed landowner referral incentive structures, neighbor-to-neighbor flyer copies, and the legally robust Georgia UETA-compliant Joint Venture Referral Agreement, is fully staged and ready for immediate campaign activation.*

I. Landowner Loyalty & Peer-to-Peer Referral Program Bylaws

Rural landowners represent the ultimate partners for expanding Blue Ridge Stream Restoration & Mitigation LLC's geomorphic restoration footprint across North Georgia. Unlike corporate developers, landowners are heavily driven by the long-term stewardship, civil stability, and recreational value of their family estates. To turn existing Joint-Venture (JV) land partners into active brand ambassadors, Blue Ridge operates a structured, three-option **Landowner Loyalty & Peer-to-Peer Referral Program**. For any existing landowner partner who refers a neighboring or regional property owner with a qualified degraded stream reach (subject to geomorphic verification of lge 50 contiguous acres and lge 1,000 linear feet of stream channel), Blue Ridge offers a choice of three premium incentives upon the successful execution of the new project's CWA Section 404 Joint-Venture contract:

Option 1: The Joint-Venture Split Booster (Gross Revenue Acceleration)

For landowners who prioritize liquid capital and long-term estate cash flow, Blue Ridge offers a permanent boost to their existing stream credit sales split:

- **The Split Modification:** The referring landowner's own Joint-Venture credit split ratio is boosted by **2.0%** (increasing their share from the industry-standard **30.0% to 32.0%** of gross credit revenues on all remaining credit release tranches of their active project).
- **The Financial Projections:** On a standard 1,500 linear foot mountain trout stream restoration project (such as Anderson Creek / Roya's Cabin) yielding 12,900 stream credits:
 - **Standard 30% Share:** Grosses **425,700 USD** at \$110/credit.
 - **Referral Boosted 32% Share:** Grosses **454,080 USD** at \$110/credit.
 - **Net Value Added:** Generates an additional **28,380 USD** in liquid payout directly to the referring landowner, paid automatically as credits are released by the USACE Savannah District and sold.

Option 2: Premium On-Site Civil Upgrades (Blue Ridge Construction Track)

Landowners can choose to exchange their cash split booster for direct, premium land enhancements executed on their own property by Blue Ridge's heavy excavation construction and bioengineering crews. Because Blue Ridge has active heavy equipment (e.g., John Deere 130G excavators, Kubota SVL97 compact track loaders) and native materials already staged on-site, we can execute major civil improvements at **0 USD cost to the landowner**:

- **Upgrade A: Private Trophy Trout Spawning Stream & Fishery Enhancement**
 - **Design & Engineering:** Design and physical excavation of a custom 100-linear-foot secondary coldwater trout spawning channel running parallel to the main restored creek.

- *Restoration Specifications:* Excavation of a 4-foot-wide meandering gravel run utilizing native sorted pea-to-cobble gravels (designed for Brook and Rainbow trout egg-laying), three instream boulder step-downs, and a small trout resting pool (5-foot depth).
- *Thermal & Canopy Protection:* Active geomorphic transplanting of mature *Rhododendron maximum* and mountain hemlock along the bank margins to maintain coldwater shading (staying below 65 degrees F).
- *Commercial Value:* **18,500 USD** (Fully covered under referral program budget).
- **Upgrade B: Heavy-Duty Structural Timber Bridge Crossing**
- *Design & Engineering:* Engineering, sitework, and structural installation of a heavy-duty timber vehicular bridge crossing over the restored stream channel to connect pasture segments.
- *Restoration Specifications:* Double-timber abutments backed with bioengineered rock gravity anchors, structural cedar log arches, and a 12-foot-wide heavy timber driving deck rated for a **25-ton vehicular capacity** (accommodating agricultural tractors, timber hauling trucks, and utility vehicles).
- *Erosion Control:* Bioengineered root-wads and geotextile soil wraps installed at the bridge approaches to prevent high-water shear failures.
- *Commercial Value:* **22,000 USD** (Fully covered under referral program budget).
- **Upgrade C: Creekside Cedar Fishing Pavilion & Viewing Dock**
- *Design & Engineering:* Construction of a premium post-and-beam timber-framed red cedar viewing pavilion adjacent to a trophy pool.
- *Restoration Specifications:* A 12' x 16' open-sided cedar pavilion featuring a tongue-and-groove cedar ceiling, heavy timber structural support posts anchored into concrete footings, rustic timber bench seating, and an integrated 8' x 8' heavy timber viewing dock extending over a restored deep pool.
- *Commercial Value:* **15,000 USD** (Fully covered under referral program budget).

Option 3: The CUVA Stewardship Endowment Grant

For landowners whose properties are currently enrolled in Georgia's **Conservation Use Value Assessment (CUVA)** program under O.C.G.A. § 48-5-7.4:

- **The Grant Structure:** Blue Ridge establishes a **15,000 USD Restricted Stewardship Grant** to support the property's ongoing agricultural and forestry conservation efforts.
- **Eligible Stewardship Uses:** Landowners can draw from this grant to pay for:
 - *Property Tax Offsets:* Reimbursing the landowner's annual property taxes for the CUVA-enrolled acreage.
 - *Certified Forestry Management Plan (FMP):* Hiring a certified forester to write or update a 10-year timber management plan to maintain CUVA eligibility.
 - *Game & Wildlife Habitat Improvements:* Purchasing native warm-season grass seeds, planting wild turkey/deer food plots, or clearing invasive privet and kudzu on the property boundaries.

II. Neighbor-to-Neighbor Landowner Outreach Kit

1. The Legacy Landowner Mailer (Direct Mail Template)

This mailer is designed to be printed on high-quality, textured cream cardstock featuring a professional, hand-signed letter from Hunter Morris and a customized map of Roya's Cabin or Anderson Creek. It targets adjacent large landowners in mountain trout watersheds.

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BLUE RIDGE STREAM RESTORATION & MITIGATION
"Restoring Georgia's Mountain Trout Legacies"

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Dear Neighbor,

As a fellow steward of North Georgia's pristine mountain lands, you understand that a healthy, flowing creek is the heart of a legacy property. However, over decades of agricultural clearing, severe storms, and timber harvesting, many of our mountain streams are suffering from accelerated bank erosion, losing valuable topsoil and choking out our native wild brook trout spawning gravels.

Blue Ridge Stream Restoration specializes in geomorphic design-build restoration. We partner with private landowners to restore eroding creeks into stable, vibrant trout wades. Through our Joint-Venture model, we cover 100% of the engineering, permitting, and heavy excavation costs. In return, we generate lucrative stream mitigation credits under the Clean Water Act Section 404, dividing the revenue 70/30 in your favor.

Our current landowner partner, [Referring_Landowner_Name], recently completed a stunning stream restoration project on their property at [Referring_Property]. Their creek has been stabilized, their trophy trout fishery has been enhanced, and they are actively receiving credit proceeds.

Because [Referring_Landowner_Name] believes in our mission, they have referred your property to us for a free geomorphic stream assessment. If your property qualifies, we would love to partner with you to restore your creek. In honor of this neighbor-to-neighbor referral, you will be eligible for a custom on-site land upgrade—such as a custom trout spawning channel, a heavy-duty timber vehicular bridge crossing, or a creekside cedar pavilion—constructed entirely at our cost.

We invite you to contact us for a friendly, no-obligation "stream walk" with our Managing Director, Hunter Morris. Let's walk your banks together and discuss how we can protect your family's land for generations to come.

Warm regards,

Hunter Morris
Managing Director
hunter@blueridgestream.us.kg

[Referring_Landowner_Signature]
Existing Landowner Partner
Blue Ridge Stream Referral Ambassador

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2. Hunter's Verbal Dialogue (Neighbor-to-Neighbor Warm Intro)

This dialogue serves as a guide for Hunter Morris when introducing the referral program during localized field visits or when introduced at community events.

Hunter: "Hey [Landowner_Name], I was actually walking the creek boundaries over at [Referring_Landowner_Name]'s place yesterday—we just completed about 1,500 feet of bioengineered stream bank work over there. [Referring_Landowner_Name] was telling me about how much soil you've been losing along your eastern pasture boundary during those heavy spring rains. What we do is pretty unique. We're geomorphic builders, not just engineers. We use natural materials—root-wads, cedar logs, and river boulders—to rebuild your banks and lock down that soil permanently. The best part is, under our Joint-Venture model, we pay for every single penny of the USACE permitting, design, and heavy equipment construction. Once it's approved, the federal

government issues stream mitigation credits, which we sell to infrastructure builders and data centers. We split those credit sales 70/30, which turns a washed-out creek liability into a major revenue generator. [Referring_Landowner_Name] loved the work so much they wanted me to come over and take a look at your stretch. If we do a project together, we can build a heavy-duty timber vehicular bridge or a custom trout-spawning run on your pasture at zero cost to you, using our equipment while we are already staged in the valley. Let's do a quick stream walk next week—no strings attached—and see what your banks look like."

III. Legal Agreement Template: Landowner Referral & JV Incentive Agreement

This legally binding agreement is drafted in full compliance with the Georgia Uniform Electronic Transactions Act (O.C.G.A. § 10-12-1 et seq.). It allows an existing landowner to execute a digital agreement with Blue Ridge to secure referral splits or civil upgrades.

LANDOWNER REFERRAL & JOINT VENTURE INCENTIVE AGREEMENT

THIS LANDOWNER REFERRAL & JOINT VENTURE INCENTIVE AGREEMENT (this "Agreement") is entered into by and between BLUE RIDGE STREAM RESTORATION & MITIGATION LLC, a Georgia limited liability company, with its principal office located in Fannin County, Georgia ("Developer"), and the undersigned landowner ("Referring Partner").

1. RECITALS

WHEREAS, Developer specializes in geomorphic fluvial stream restoration and the creation of compensatory stream mitigation banks under Section 404 of the Clean Water Act and Georgia Department of Natural Resources Environmental Protection Division ("EPD") regulations; and
WHEREAS, Referring Partner is an active Joint-Venture partner of Developer under an existing Mitigation Banking Agreement, or a recognized community ambassador; and
WHEREAS, Referring Partner desires to identify and introduce third-party rural landowners in the State of Georgia with degraded stream resources to Developer, subject to the terms, incentives, and legal covenants detailed herein.

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

2. REFERRAL CRITERIA AND QUALIFICATION

To qualify for an incentive payout under this Agreement, the referred property and landowner must satisfy the following geomorphic and legal thresholds:

- (a) The referred property must consist of a minimum of fifty (50) contiguous acres located within the State of Georgia.
- (b) The referred property must contain a minimum of one thousand (1,000) linear feet of degraded stream channel experiencing visible geomorphic bank erosion, as verified by a physical geomorphic stream walk executed by Developer's Managing Director.
- (c) The referred landowner must execute a legally binding Joint-Venture Stream Mitigation Banking Agreement with Developer within twenty-four (24) months of the initial referral date (the "JV Closing").

3. INCENTIVE SELECTION AND PAYOUT TERMS

Upon a successful JV Closing, Referring Partner shall be entitled to select one (1) of the following three (3) incentive tracks, which selection shall be documented in Writing as an Addendum to this Agreement:

TRACK 1: JOINT-VENTURE CREDIT SPLIT BOOSTER

If selected, Developer shall permanently boost Referring Partner's own active Joint-Venture credit split ratio by two point zero percent (2.0%). Referring Partner's split shall increase from thirty point zero percent (30.0%) to thirty-two point zero percent (32.0%) of gross credit sales proceeds collected on Referring Partner's active stream restoration project. Payouts shall be disbursed within thirty (30) business days of Developer receiving cleared funds from credit purchasers.

TRACK 2: PREMIUM ON-SITE CIVIL UPGRADES

If selected, Developer shall construct, at its sole expense, one of the following pre-engineered land enhancements on Referring Partner's property, using Developer's staged heavy excavation equipment and field crews during the active mobilization window:

- [] Upgrade A: Custom 100-LF Trout Spawning Run & Shading Channel (Value: \$18,500)
- [] Upgrade B: Heavy-Duty 12-foot Timber vehicular Bridge Crossing (Value: \$22,000)
- [] Upgrade C: Red Cedar Post-and-Beam Fishing Pavilion & Viewing Dock (Value: \$15,000)

All upgrade construction shall be executed in a good and workmanlike manner, in full compliance with Developer's bioengineering specifications and applicable local building guidelines.

TRACK 3: CUVA STEWARDSHIP ENDOWMENT GRANT

If selected, Developer shall disburse fifteen thousand and 00/100 USD (\$15,000.00) into a restricted stewardship account managed by Developer. These funds shall be paid out directly to certified third-party vendors to cover Referring Partner's eligible conservation expenses, including local property taxes on CUVA-enrolled acreage, certified forestry management plans (FMP), or wildlife habitat seed mixes, upon the submission of valid invoices.

4. CONSTRUCTION COVENANTS AND LIABILITY WAIVERS (APPLICABLE TO TRACK 2)

In the event Referring Partner selects Track 2 (Premium On-Site Civil Upgrades):

- (a) Referring Partner hereby grants Developer, its employees, subcontractors, and heavy equipment operators, a temporary, non-exclusive access easement over, under, and across Referring Partner's property to execute the selected upgrades.
- (b) REFERRING PARTNER ACKNOWLEDGES THAT HEAVY EXCAVATION AND TIMBER CONSTRUCTION CARRY INHERENT OPERATIONAL RISKS. REFERRING PARTNER AGREES TO RELEASE, WAIVE, INDEMNIFY, AND HOLD HARMLESS DEVELOPER, ITS OFFICERS, DIRECTORS, AND EMPLOYEES, FROM ANY AND ALL CLAIMS, DAMAGES, OR LIABILITY ARISING OUT OF OR RELATED TO THE DESIGN, EXCAVATION, AND CONSTRUCTION OF THE SELECTED UPGRADES, EXCEPT FOR CLAIMS ARISING SOLELY FROM DEVELOPER'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT.
- (c) Developer provides a one (1) year structural warranty on all timber bridge installations and pavilion structures from the date of construction completion.

5. TAX TREATMENT AND REGULATORY COMPLIANCE

Referring Partner shall be solely responsible for any federal, state, or local tax liabilities arising from cash payouts under Track 1 or construction values under Track 2. Developer shall issue an IRS Form 1099-MISC to Referring Partner for the appraised value or cash sum of the selected incentive in compliance with federal tax law. This Agreement and the referral incentives provided herein are designed to comply fully with all applicable federal, state, and USACE ethical guidelines.

6. ELECTRONIC SIGNATURE AND GOVERNING LAW

This Agreement may be executed by electronic signature under the Georgia Uniform Electronic Transactions Act (O.C.G.A. § 10-12-1 et seq.). This Agreement shall be governed by, interpreted, and enforced in accordance with the laws of the State of Georgia, with exclusive venue for any legal dispute established in the Superior Court of Fannin County, Georgia.

IN WITNESS WHEREOF, the Parties have executed this Landowner Referral & Joint Venture Incentive Agreement as of the dates indicated below.

DEVELOPER:
BLUE RIDGE STREAM RESTORATION LLC

REFERRING PARTNER:

By: _____
Hunter Morris, Managing Director

By: _____
Landowner / Authorized Signatory

Date: _____

Date: _____